

22STCV18584 22STCV18584

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-16

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Case Number: 22STCV18584 Hearing Date: September 16, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:16 PM on September 15, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 15, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to smcdept734@lacourt.org, with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff allegedly

slipped and fell at Defendants' premises.

Defendant,

Chedraui USA, Inc., erroneously named as Chedraui U.S.A. and Bodega Latina Corporation dba El Super moves to set aside the default and default judgment and requests the imposition of sanctions.

TENTATIVE RULING

The hearing

on Defendant, Chedraui USA, Inc., erroneously named as Chedraui U.S.A. and Bodega Latina Corporation dba El Super's motion to set aside the default and default judgment CONTINUED to October 7, 2026 at 8:30 a.m. to permit Plaintiff to submit a sur-reply, which is due September 30, 2026.

ANALYSIS

Discussion

The Court has

reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Defendant,

Chedraui USA, Inc., erroneously named as Chedraui U.S.A and Bodega Latina Corporation dba El Super moves to set aside the default and default judgment.

(b) The court may, upon any terms as

may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . .

(Code Civ. Proc. § 473(b).)

First, the judgment entered on April

6, 2026 will be set aside because Plaintiff did not identify on the judgment the Defendant(s) against whom judgment is sought.

As for the entry of default, the relevant chronology is as follows:

The Complaint filed on June 6, 2022 named the following as Defendants: (1) Bodega Latina Corporation; (2) Chedraui U.S.A.

On April 13, 2023, Defendant Chedraui USA, Inc., identified itself as have been erroneously and separately named as: (1) Chedraui U.S.A, and (2) Bodega Latina Corporation dba El Super, and in that capacity filed an Answer to the Complaint.

On May 30, 2023, Defendants Chedraui U.S.A. and Chedraui USA, Inc. were dismissed without prejudice. As indicated above, Chedraui U.S.A. is not a separate entity.

On August 28, 2024, Default was entered against Defendant Bodega Latina Corporation. As indicated above, Bodega Latina Corporation is not a separate entity.

The Declaration of Mark Derflinger states at ¶ 8:

8.

Publicly available corporate records reflect that Chedraui USA, Inc. is formerly known as Bodega Latina Corporation and operates under the name “El Super.”

(Declaration of Mark Derflinger, ¶ 8.)

The moving Derflinger did not attached said publicly available corporate records. However, attached as Exh. A to the Derflinger Declaration submitted in support of the Reply is the Amended Statement by Foreign Corporation (Name Change ONLY) maintained by the California Secretary of State. The filing identifies “Bodega Latina Corporation” as the corporate name and “Chedraui USA, Inc.” as the new corporate name. Exhibit A also contains the certification of the Delaware Secretary of State reflecting that Bodega Latina Corporation filed a Certificate of Amendment on April 13, 2022, “changing its name to ‘CHEDRAUI USA, INC.’” (Reply Derflinger Decl., ¶¶ 4, 5.)

Because this new evidence was not submitted until the Reply, the Court will give Plaintiff an opportunity to address this new

evidence. The trial court has discretion whether to accept new evidence with the reply papers, in which case the other party must be given an opportunity to respond. (See Alliant Ins. Services, Inc. v. Gaddy (2008) 159 Cal.App.4th 1292, 1308; Plenger v. Alza Corp. (1992) 11 Cal.App.4th 349, 362, fn. 8.)

The Court notes, however, that it appears that, based upon the foregoing evidence, there is no separate entity which currently exists with the name “Bodega Latina Corporation.” Rather, that is the former name of Chedraui USA, Inc., which Plaintiff dismissed from this action on May 30, 2023. As such, it would be improper to enter a default and default judgment against an entity that was renamed as the entity which Plaintiff dismissed.

Surprisingly, there appears to be no published authority explicitly and directly holding that a complaint must name the business entity in its proper capacity. However, such a conclusion is supported by existing authority. . . .

[*947] . . .

Though such a distinction may appear hypertechnical, our courts have consistently enforced procedures which ensure jurisdiction. (Citation omitted.) Therefore, because Schott failed to name Kalar Construction, Inc., as a proper party, no valid judgment was entered against Kalar Construction, Inc., as jurisdiction was never effected over the corporation.

(Earl W. Schott, Inc. v. Kalar (1993) 20 Cal.App.4th 943, 946-47 [bold emphasis added].)

To the extent “El Super” is relevant, this appears to be a fictitious business name which is not a legal entity that can be sued.

The trial court erred when it refused to set aside the default of “Pinkerton’s, Inc., DBA Pinkerton Security & Investigation Services” for the simple reason that the default was improperly entered in the first place. A default may only be entered when no responsive pleading has been filed. (Code Civ. Proc., § 585, subd. (b).) Here not only had Pinkerton’s, Inc., filed a demurrer, which was sustained, but it was dismissed from the suit. Any subsequent proceedings against Pinkerton’s, Inc., whether in its corporate name or its fictitious business name, were improper.

Pinkerton's, Inc., operates in California under the fictitious business name "Pinkerton Security & Investigation Services" and has filed the appropriate [*1348] fictitious business name statements. (Bus. & Prof. Code, § 17910 et seq.) This case has been propelled by a fundamental failure to comprehend the distinction, or lack thereof, between the legal corporation and its fictitious business name. The plaintiffs have been steadfast in their insistence that they do not want to sue Pinkerton's, Inc., the Delaware corporation. Rather, they want to sue its "DBA" "Pinkerton's, Inc., DBA Pinkerton Security & Investigation Services." But "Pinkerton Security & Investigation Services" is a fiction. It is nothing more than a name that Pinkerton's, Inc., uses. And although a lawsuit could properly be brought against Pinkerton's, Inc., by suing and serving it under its fictitious business name (citation omitted), once Pinkerton's, Inc., appeared and was dismissed, the case was at an end.

The designation of "DBA" or "doing business as" simply indicates Pinkerton's, Inc., operates under a fictitious business name. (See Bus. & Prof. Code, § 17900 et seq. [regulating fictitious business names].) Use of a fictitious business name does not create a separate legal entity. As the First District Court of Appeal recently noted, " '[t]he designation [DBA] means "doing business as" but is merely descriptive of the person or corporation who does business under some other name. Doing business under another name does not create an entity distinct from the person operating the business.' [Citation.] The business name is a fiction, and so too is any implication that the business is a legal entity separate from its owner." (Citations omitted.)

... [*1349] ...

The plaintiffs' and the trial court's confusion stems from the fact that the plaintiffs named and served Pinkerton's, Inc., under its fictitious business name, "Pinkerton's, Inc., DBA Pinkerton Security & Investigation Services," an entirely acceptable procedure. (Code Civ. Proc., § 474; see *Billings v. Edwards*, supra, 91 Cal. App. 3d at p. 831, fn. 1 ["Where a person or corporation elects to follow the statutory procedure of section 17900 et seq. of the Business and Professions Code, it has held itself out to those with whom it does business as having adopted that name for all business purposes. Notice to it under that name is all that the law requires."].) But while a corporation may be sued by its fictitious business name, once its true name is discovered, all further proceedings should be in the corporate name. (Code Civ. Proc., § 474; see 1 Ballantine & Sterling, *Cal. Corporation Law* (4th ed. 1996) § 49.04,

pp. 3-50.8 to 3-52.) The trial court incorrectly concluded two separate appearances had to be made, one by the corporation in its true legal name and one by the corporation under its fictitious name, and was wrong when it found an action could proceed against a fictitious business name after the legal entity had been dismissed. Since Pinkerton's, Inc., had appeared, entry of default against it under its fictitious business name was improper and had no legal effect. Furthermore, inasmuch as Pinkerton's, Inc., has been dismissed, the action against it in both its corporate name and its fictitious business name must be dismissed.

(Pinkerton's, Inc. v. Superior Court (1996) 49 Cal.App.4th 1342, 1347-49 [bold emphasis and underlining added].)

Finally, plaintiff's argument that the "true defendant" in this case is not Muddy Waters but "Dupré Analytics" is misplaced. "The designation of 'DBA' or 'doing business as' simply indicates [defendant corporation] operates under a fictitious business name. [Citation.] Use of a fictitious business name does not create a separate legal entity." (Citation omitted.) "[W]hile a corporation may be sued by its fictitious business name, once its true name is discovered, all further proceedings should be in the corporate name." (Id. at [*921] p. 1349.) Separate appearances are not required, and an action cannot be maintained against the fictitious business name if the legal entity is entitled to dismissal. (Ibid.) . . . Plaintiff has submitted no evidence of a separate legal entity by the name of Dupré Analytics, that it served any other entity under the fictitious name Dupré Analytics, or that any other entity has appeared in this action. Plaintiff cannot seek to maintain suit against an entirely fictitious entity where an actual, legal entity has acknowledged responsibility for the allegedly tortious acts set forth in the complaint and shown it is entitled to dismissal.

(Muddy Waters, LLC v. Superior Court (2021) 62 Cal.App.5th 905, 920-921 [bold emphasis added].)

The hearing
is CONTINUED to October 7, 2026 at 8:30 a.m. to permit Plaintiff to submit a sur-reply, which is due September 30, 2026.